

Gurdev Singh vs Balbir Kaur on 12 January, 1993

Equivalent citations: II(1993)DMC226

JUDGMENT

Amarjeet Chaudhary, J.

1. This appeal is directed against the judgment of District Judge, Hoshiarpur, dated 20.9.1991 vide which he had dismissed the petition under Section 13 of the Hindu Marriage Act for dissolution of marriage filed by the petitioner who is appellant before this Court.

The challenge to the judgment is on the ground that the Trial Court had ignored the material placed on record by the appellant.

2. I have gone through the entire evidence.

The relevant facts of the case are appellant (hereinafter referred to as the petitioner) had filed petition under Section 13 of the Hindu Marriage Act seeking divorce from his wife Smt. Balbir Kaur on the ground that the respondent had treated him with cruelty after solemnisation of the marriage, the marriage between the parties was solemnised on 6.6.1979. No child was born inspite of cohabitation. The petitioner's two earlier divorce petitions were dismissed in 1983 and 1989. The petitioner in the application bearing No. 38 filed on 2.8.1989 had alleged that the respondent had suffered from a venereal disease due to her own fault and got her uterus removed with the result that she had become incapable to produce any child and was therefore guilty of cruelty towards the petitioner. The allegation was denied by respondent-wife. The following issue was framed :--

1. Whether the respondent had treated the petitioner with cruelty ? OPP.

2. Relief.

The learned Trial Court decided both the issues against the petitioner.

3. The petitioner in order to prove his case produced one Dr. (Mrs.) Vanita Malhotra, Reader in the Department of Pathology, Dayanand Medical College, Ludhiana, deposed from the record that uterus of one Balbir Kaur patient was received by Pathology Department for histo-pathology study on 22.12.1987 and that she found that the uterus contained multiple leiomyomas which were malignant tumors. In cross-examination, she admitted that she did not see the patient and as such could not say whether Balbir Kaur respondent was the same person whose uterus had been removed. Respondent Balbir Kaur on the other hand on oath had deposed that she was never operated upon nor was ever admitted in Dayanand Medical College Hospital, Ludhiana. In view of the statement of the respondent it is a case where the petitioner has not been able to prove that his

wife Balbir Kaur was operated upon or that her uterus was removed. The Trial Court had rightly disallowed the application moved by the petitioner for medical examination of the respondent. The same was disallowed because the medical examination of the respondent could not have served any purpose; the reason being that for a wife to have her uterus removed on account of disease, would not by any stretch of imagination amount to cruelty on her part against her husband. There is no evidence on the record to show that the respondent ever suffered from any venereal disease.

In view of the aforesaid discussion, I hardly find any ground to interfere in the well reasoned order of the Trial Court, The appeal is accordingly dismissed with no order as to costs.